

		<i>Inc.</i> (1998) 67 Cal.App.4th 295, 313; <i>Dill v. Barquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1436-1437.) The court finds that Defendant has not met his burden of rebutting the presumption of proper service. As such, the motion is DENIED. Defendant SHALL respond to the Complaint within 20 days. Plaintiff to give notice.
11	Doe vs. Anaheim Elementary School District	<u>Demurrer</u> <u>Motion to Strike</u> 1. Demurrer The court SUSTAINS, with 5 days leave to amend, the unopposed demurrer by Defendant ANAHEIM ELEMENTARY SCHOOL, regarding the third cause of action of the Complaint filed by Plaintiff JANE JI DOE, a minor, by and through her Guardian ad Litem, SHARLENE SANCHEZ. The demurrer appears to be meritorious. Plaintiff’s third cause of action asserts Defendant failed to “properly warn, train, and/or educate their administrators, credentialed staff, and classified staff.” (Compl., ¶ 88.) As noted by Defendant, “a direct claim against a governmental entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained.” (<i>de Villers v. County of San Diego</i> (2007) 156 Cal.App.4th 238, 255-256.) Similarly, while the third cause of action alleges a failure to properly warn, train, and educate students as to bullying (Compl., ¶¶ 85-87), schools do not have an actionable duty of care “in the discharge of their academic functions.” (<i>Peter W. v. San Francisco Unified School District</i> (1976) 60 Cal.App.3d 814, 825.)